

TrustLine — Legal Question Catalogue

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Confidential. Prepared by NexonAI Consulting SRL for legal review. To be read together with the TrustLine Solution Overview.

This catalogue lists all questions we currently have on TrustLine. They are grouped by topic. Questions marked ★ are the ones we need answered first. Where a question refers to a jurisdiction, we ask in the first place about Jordan and Yemen, and about other MENA jurisdictions to the extent you advise on them or can recommend counsel. We do not expect answers to every question in a first call. We would value your view on which questions are missing, mis-prioritised or should be asked differently (K9).

A. Characterisation and licensing of TrustLine

- **A1 ★** Under Jordanian law, how would a cross-border service be classified that transmits signed payout instructions between licensed money transfer operators and their agents without holding or moving funds: as a payment service, payment system, payment infrastructure, technology service provider, or as something else? Which authority decides?
- **A2 ★** How would the same service be classified under Yemeni law, taking into account that central bank functions are exercised by competing institutions in different parts of the country (see F2)?
- **A3** Which other MENA jurisdictions may be relevant for pilot corridors, which of them do you advise on, and for which should we engage local counsel?
- **A4 ★** Does it change the classification that TrustLine temporarily stores encrypted data packages that it cannot read, until delivery, and then deletes them?
- **A5** Does keeping a tamper-evident log, with the Relay's own log as one of three, make TrustLine a reporting entity or a regulated service provider in its own right?
- **A6 ★** Is it lawful for a regulated operator to outsource instruction messaging or log-keeping to a foreign provider such as TrustLine? Is notification to or approval by the central bank required for the use of third-party technology providers, outsourcing or cloud services?
- **A7** Does TrustLine need a local entity, representative, registration or licence in order to contract with operators in Jordan or in Yemen?
- **A8** Are there regulatory sandboxes or innovation programmes, for example at central bank level, that would suit TrustLine, and what would participation require?

- **A9** Would the classification change if TrustLine later adds further services: an SMS fallback channel, integration into the POS terminals that operators give their agents, USSD or SIM-based access for basic phones, or read-only evidence access for supervisors?
- **A10** Does the model of a closed community with due diligence, in which TrustLine decides on admission and may refuse or exclude participants, raise licensing, competition-law or non-discrimination issues?

B. Network operators, agents and corridors

- **B1 ★** Which licence types allow a company to operate a money transfer agent network in Jordan (for example exchange company, payment service provider, bank), and what are the main conditions?
- **B2 ★** Which licence types and conditions apply in Yemen?
- **B3 ★** May agents be independent businesses, or must they be branches of the licensed operator? What registration, approval or reporting does the central bank require for agents?
- **B4** Who is liable to the supervisor for the conduct of agents, and to what extent can that liability be contracted away?
- **B5 ★** What requirements apply to cross-border corridors: licences or approvals per corridor, approval of counterparty operators, limits per transfer or per customer, permitted currencies and reporting?
- **B6** Are there rules on the form of payout: cash, mobile money or bank account?
- **B7 ★** How are informal or hawala-type networks treated today (prohibited, tolerated, licensable)? Would the participation of a licensed operator in a closed, due-diligenced network be viewed by the central bank as positive, neutral or negative?
- **B8** Do foreign-exchange rules, capital controls or rate rules, such as official versus market rates or limits on US-dollar payouts, affect payout instructions?
- **B9** Must operators use national platforms or switches for certain payments, and would a messaging layer such as TrustLine interact with them?
- **B10** What must an operator verify, and document, before connecting to a foreign partner network?

C. AML/CFT, sanctions screening and record-keeping

- **C1 ★** What are the record-keeping duties for money transfers (content, retention period, format, location) in Jordan and in Yemen, and who bears them?

- **C2 ★** What information on originator and beneficiary must accompany a transfer (the equivalent of the FATF travel rule), from which thresholds, and who must transmit it to whom?
- **C3 ★** May an operator transmit that information to a partner operator through an end-to-end encrypted channel that passes through a third-party relay which cannot read it?
- **C4** What are the suspicious-transaction reporting obligations, and could TrustLine, which sees metadata (amount, corridor, status, timing) but no names, be drawn into them or into tipping-off rules?
- **C5** Is TrustLine allowed, or required, to flag suspicious patterns it can see, for example unusual volumes or repeated rejections, to operators or to authorities?
- **C6** What are the duties of operators on beneficial ownership, politically exposed persons and sanctions screening, and may TrustLine rely on an operator's confirmation that screening took place?
- **C7** Which due diligence documents do the central bank or the financial intelligence unit expect operators to hold on partner operators? Would TrustLine's due diligence file be accepted as part of that evidence?
- **C8** Are digital signatures and tamper-evident logs recognised as legally valid evidence and as satisfying record-keeping duties? Which standards apply, for example electronic signature rules or certified providers?
- **C9** What format and what access do supervisors require for inspections: on-site, remote or data export?
- **C10** Can the results of TrustLine's due diligence, such as approval, rejection or risk rating, be shared with other operators, banks or supervisors without breaching confidentiality, banking secrecy or defamation rules?

D. Data protection, confidentiality and localisation

- **D1 ★** Which data protection law applies to originator and beneficiary data and to metadata, and what is TrustLine's role (processor, joint controller or other)?
- **D2 ★** Are there restrictions on the cross-border transfer of personal or financial data, or data localisation requirements for financial data?
- **D3** Does banking or financial secrecy law restrict sharing customer data with a foreign relay?
- **D4 ★** How does the duty to retain records interact with erasure rights, given that the Relay deletes encrypted packages after delivery while the operators keep the data?
- **D5** Are there restrictions on the use, import or export of encryption, such as licensing of cryptographic products?

- **D6** How should TrustLine respond to production orders or interception requests from authorities when it technically cannot read the data? Does any law require access capabilities such as lawful interception or key escrow?
- **D7** What breach-notification duties apply, and to whom?
- **D8** Where may the Relay be hosted: inside or outside the region, and are there restrictions on cloud providers of particular nationalities?

E. Sanctions and US-dollar settlement

- **E1 ★** Which sanctions regimes (United Nations, United States, European Union, United Kingdom, regional) must operators and banks in Jordan and Yemen apply in practice, and how do banks enforce them towards operators?
- **E2 ★** TrustLine intends to apply sanctions lists voluntarily to all participants (operators, owners, agents). Which lists do you recommend?
- **E3 ★** Does US-dollar settlement through US correspondent banks create US jurisdiction over TrustLine even though TrustLine holds no funds? How do hosting, vendors and personnel affect this?
- **E4** How do banks in Jordan assess money transfer operators and their tools (de-risking practice), and what evidence do they typically require?
- **E5** For Yemen: which designations or territorial controls (areas under different authorities) affect payouts, and how do exemptions or licences for humanitarian use work in practice?
- **E6** What are the consequences of a sanctions hit for an operator and for TrustLine? Are there reporting duties, and what happens to open instructions?
- **E7** Is it compatible with local law and with the operators' duties towards their end customers that TrustLine freezes open instructions after a key revocation?

F. Central banks and supervisors

- **F1 ★** Which authorities are competent in Jordan (central bank, financial intelligence unit, others), and which of them is relevant for a messaging and evidence service?
- **F2 ★** For Yemen: how are competences divided between the central bank institutions in different parts of the country, which licences does each recognise, and what follows for operators and for TrustLine?
- **F3 ★** Should we approach the central bank proactively, and when? Which format works (informal meeting, sandbox application, formal enquiry), and what are the risks of approaching too early or too late?

- **F4** Would supervisors or central banks value read-only access to TrustLine evidence, and what legal basis and operator consent would be required?
- **F5** Which reporting formats or interfaces do supervisors expect?
- **F6** Might a supervisor object to a private foreign company holding data about remittance flows? Are national alternatives or switches mandated?
- **F7** Are there political or reputational sensitivities we should know about, for example the position of different authorities or relations between countries?

G. Humanitarian and NGO use

- **G1** What approvals do non-governmental organisations need to distribute cash through money transfer operators in Jordan or Yemen: registration, central bank or ministry approval, donor-driven rules?
- **G2 ★** How do sanctions exemptions and humanitarian licences work for payouts in areas controlled by designated groups, and what evidence do authorities or banks expect?
- **G3** Which rules apply to the identification of beneficiaries who have no ID?
- **G4** What data protection or safety concerns arise for beneficiary data in conflict areas, for example risk from authorities or armed groups?
- **G5** Could providing an audit trail to donors expose NGOs, operators or TrustLine to legal risk, for example through data requests by courts or forced disclosure?

H. Contracts, liability and evidence

- **H1 ★** Which governing law and forum do you advise for the participation terms with operators in Jordan and Yemen, and are arbitration clauses enforceable there?
- **H2 ★** What liability can TrustLine exclude or cap towards operators, for example for delays, wrongful suspension or wrongful rejection of instructions, and which rules are mandatory?
- **H3 ★** What liability does TrustLine risk as the party that decides on admission (due diligence) and on suspension (key revocation), if an admitted operator misuses the network or a suspension harms a legitimate operator?
- **H4** How should the right to suspend and to freeze open instructions be drafted so that it is enforceable?
- **H5** Can agents accept terms through an in-app confirmation (icon and voice prompt) instead of a signature, and are such confirmations binding on users who cannot read or write?

- **H6** Are the digital signatures between operators legally binding, and do we need qualified certificates?
- **H7** Does consumer protection law apply to end customers in relation to TrustLine, although they have no contract with it?
- **H8** Which provisions on data processing are needed between TrustLine and the operators?
- **H9** Which insurance do you recommend, for example professional indemnity and cyber cover?

I. Corporate, tax and commercial

- **I1** Which structure for the TrustLine entity is best given customers in Jordan and Yemen, and are there restrictions on foreign providers contracting with licensed entities there?
- **I2** Are fees payable in US dollars? Which withholding taxes, VAT or sales taxes, invoicing rules and repatriation rules apply?
- **I3** How can payments from Yemeni customers be received in practice and lawfully (banking, sanctions, exchange)?
- **I4** Are there restrictions on doing business with Yemeni entities from the European Union, or on foreign ownership in either country?
- **I5** Do we need local partners or representatives to reach operators?

J. Name and intellectual property

- **J1** Is the name TrustLine available and protectable in the region, and are there conflicts?
- **J2** Is it acceptable to describe TrustLine in marketing as “the SWIFT for operators of money transfer agent networks”, or does that conflict with trademark or misleading-comparison rules?

K. Practical matters of the engagement

- **K1 ★** Are you available to advise us, and at what scope: Jordan only, Jordan and Yemen, or the wider region?
- **K2 ★** In what form would you deliver advice, for example a short memo with a traffic-light assessment per question, and in which language?
- **K3 ★** What is your fee model (we prefer a fixed fee per phase), and what time frame is realistic?

- **K4 ★** Do you have conflicts of interest, such as relationships with operators, banks or competing infrastructure providers?
- **K5** Would you sign a mutual non-disclosure agreement before you receive further details?
- **K6** Do you work with correspondents in Yemen who can speak to the authorities in different parts of the country, or should we engage separate Yemeni counsel? Can you recommend someone?
- **K7** Whom else should we speak to: central bank officials, compliance officers of banks, counsel of operators, auditors?
- **K8** Which documents or information do you need from us before you start?
- **K9** Which topics in this catalogue are, in your view, missing or mis-prioritised?